

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3242

By: Hasenbeck

AS INTRODUCED

An Act relating to privacy; amending Section 1, Chapter 323, O.S.L. 2022, as amended by Section 1, Chapter 283, O.S.L. 2023 (70 O.S. Supp. 2025, Section 1-125), which relates to restrooms in public schools; defining terms; adding sleeping quarters to certain exclusive usage; prohibiting compelling of unrelated students of opposite sex to share sleeping quarters during a public school event; providing exception; requiring private changing areas; requiring certain entities to provide exclusive changing and sleeping areas for persons of designated sex; requiring exclusivity; providing exceptions; prohibiting compelling of unrelated students of opposite sex to share sleeping quarters during a higher education event; requiring private changing areas in institute of higher education; requiring option for housing provided by an institute of higher education to be exclusively with the same sex; clarifying certain situations and facilities are allowed; providing private cause of action; providing filing time limitations; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 1, Chapter 323, O.S.L. 2022, as amended by Section 1, Chapter 283, O.S.L. 2023 (70 O.S. Supp. 2025, Section 1-125), is amended to read as follows:

Section 1-125. A. As used in this section:

1 1. ~~"Sex" means the physical condition of being male or female~~
2 ~~based on genetics and physiology, as identified on the individual's~~
3 ~~original birth certificate~~ has the same meaning as provided in
4 paragraph 8 of Section 16 of Title 25 of the Oklahoma Statutes;

5 2. "Multiple occupancy restroom or changing area" means an area
6 in a public school or public charter school building designed or
7 designated to be used by more than one individual at a time, where
8 individuals may be in various stages of undress in the presence of
9 other individuals. The term may include but is not limited to a
10 school restroom, locker room, changing room, or shower room;

11 3. "Coach" means a person employed by a public school district
12 or public charter school who is involved in the teaching or training
13 of students participating in a school-sponsored athletic activity;
14 ~~and~~

15 4. "School-sponsored athletic activity" means a sporting event
16 that is supported and affiliated with the school such as practices,
17 games, matches, and tournaments; and

18 5. "Sleeping quarters" means a room containing a bed and in
19 which more than one individual is housed overnight.

20 B. To ensure privacy and safety, each public school and public
21 charter school that serves students in prekindergarten through
22 twelfth grades in this state shall require every multiple occupancy
23 restroom ~~or,~~ changing area, and sleeping quarters designated as
24 follows:

1 1. For the exclusive use of the male sex; or

2 2. For the exclusive use of the female sex.

3 C. Each public school or public charter school in this state
4 shall provide a reasonable accommodation to any individual who does
5 not wish to comply with the provisions of subsection B of this
6 section. A reasonable accommodation shall be access to a single-
7 occupancy restroom or changing room.

8 D. During any activity or event authorized by a public school
9 or public charter school where students share sleeping quarters, no
10 student shall be required to share sleeping quarters with a member
11 of the opposite sex, unless such persons are members of the same
12 family, such as a parent, guardian, sibling, or grandparent.

13 E. In any other facility or setting in a public school or
14 charter school where a person may be in a state of undress in the
15 presence of others, school personnel shall provide separate, private
16 areas designated for use by persons based on their sex. Except as
17 provided in subsection F of this section, no person shall enter such
18 private areas unless he or she is a member of the designated sex.

19 F. The provisions of this section shall not apply to
20 individuals entering a multiple occupancy restroom or changing area
21 designated for use by the opposite sex when entering in any of the
22 following circumstances:

23 1. For custodial, maintenance, or inspection purposes;

24 2. To render emergency medical assistance; or

1 3. If a suitable meeting room or area is not available, a coach
2 may enter a locker room before, during, or after a school-sponsored
3 athletic activity, provided:

4 a. all students present are fully clothed,

5 b. the coach shall be accompanied by at least one
6 additional adult at all times, and

7 c. if the coach is the opposite sex of the students
8 present, the coach shall be accompanied by at least
9 one adult of the same sex as the students present.

10 The adult shall not be a current high school student.

11 ~~F.~~ G. 1. Each school district board of education and public
12 charter school governing board shall adopt a policy to provide
13 disciplinary action for individuals who refuse to comply with the
14 provisions of this section.

15 2. No school district board of education or charter school
16 governing board shall adopt a policy contrary to the provisions of
17 this section.

18 ~~F.~~ H. Upon a finding of noncompliance with the provisions of
19 subsections ~~B, C, and D~~ through F of this section by the State Board
20 of Education, the noncompliant school district or public charter
21 school shall receive a five percent (5%) decrease in state funding
22 for the school district or public charter school for the fiscal year
23 following the year of noncompliance.

1 ~~G.~~ I. A parent or legal guardian of a student enrolled in and
2 physically attending a public school district or public charter
3 school shall have a cause of action against the public school
4 district or public charter school for noncompliance with the
5 provisions of subsections ~~B, C, and D~~ through F of this section.

6 ~~H.~~ J. The State Board of Education shall promulgate rules to
7 implement the provisions of this section.

8 SECTION 2. NEW LAW A new section of law to be codified
9 in the Oklahoma Statutes as Section 401 of Title 25, unless there is
10 created a duplication in numbering, reads as follows:

11 A. For purposes of this section:

12 1. "Changing room" means a room or area in which a person may
13 be in a state of undress in the presence of others, including a
14 locker room or shower room.

15 2. "Coach" means a person employed by a public institution of
16 higher education who is involved in the teaching or training of
17 students participating in an institution-sponsored athletic
18 activity.

19 3. "Covered entity" includes:

20 a. "public institution of higher education" which means
21 any institution within the Oklahoma State System of
22 Higher Education or technology center schools overseen
23 by the State Board of Career and Technology Education,
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1 b. "public building" which means a building owned or
2 operated by a governmental subdivision of the state,
3 and

4 c. "domestic violence shelter" which means a state-
5 operated or state-funded facility that provides
6 services, including food, housing, counseling, and
7 assistance to victims of domestic violence or abuse
8 and their minor dependent children in this state.

9 4. "Multi-occupancy" means a space that is designed for use by
10 multiple persons simultaneously.

11 5. "Institution-sponsored athletic activity" means a sporting
12 event that is supported and affiliated with a public institution of
13 higher education such as practices, games, matches, and tournaments.

14 6. "Restroom" means a room that includes one or more toilets or
15 urinals.

16 7. "Sleeping quarters" means a room containing a bed and in
17 which more than one individual is housed overnight.

18 B. 1. A covered entity shall designate each multi-occupancy
19 restroom, changing room, and sleeping quarters for the exclusive use
20 of:

21 a. females, or

22 b. males.

23 2. Every restroom or changing room within a covered entity that
24 is designated for females or males shall only be used by members of

1 that sex. No individual shall enter a restroom or changing room
2 that is designated for females or males unless he or she is a member
3 of the designated sex.

4 3. The covered entity shall take reasonable steps to provide
5 individuals with privacy in restrooms, changing rooms, and sleeping
6 quarters from members of the opposite sex.

7 4. This section shall not apply to an individual who enters a
8 restroom or changing room designated for the opposite sex in any of
9 the following circumstances, provided that the restroom or changing
10 room is not in use:

- 11 a. to perform custodial, maintenance, or inspection
12 purposes,
- 13 b. to render medical assistance,
- 14 c. to render assistance by law enforcement,
- 15 d. to provide services or render aid during a natural
16 disaster, a declared emergency, or when necessary to
17 prevent a serious threat to good order or safety, or
- 18 e. if a suitable meeting room or area is not available, a
19 coach may enter a locker room before, during, or after
20 an institution-sponsored athletic activity, provided:
 - 21 (1) all students present are fully clothed,
 - 22 (2) the coach shall be accompanied by at least one
23 additional adult at all times, and

1 (3) if the coach is the opposite sex of the students
2 present, the coach shall be accompanied by at
3 least one adult of the same sex as the students
4 present.

5 5. During any activity or event authorized by a public
6 institution of higher education where students share sleeping
7 quarters, no student shall be required to share sleeping quarters
8 with a member of the opposite sex, unless such persons are members
9 of the same family, such as a parent, guardian, sibling, or
10 grandparent.

11 6. In any other facility or setting in a public institution of
12 higher education where a person may be in a state of undress in the
13 presence of others, institution personnel shall provide separate,
14 private areas designated for use by persons based on their sex.
15 Except as provided in subsection (4), no person shall enter said
16 private areas unless he or she is a member of the designated sex.

17 7. A public institution of higher education that offers housing
18 for student residents shall provide students the option to be housed
19 only with persons of the same sex.

20 8. Nothing in this section shall be construed to prohibit a
21 covered entity from:

22 a. adopting policies necessary to accommodate persons
23 protected under the Americans with Disabilities Act,
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1 young children in need of assistance, or elderly
2 persons requiring aid,

3 b. establishing single-occupancy restrooms, changing
4 rooms, or sleeping quarters, or family restrooms,
5 changing rooms, or sleeping quarters, or

6 c. redesignating a multi-occupancy restroom, changing
7 room, or sleeping quarters designated for exclusive
8 use by one sex to a designation for exclusive use by
9 the opposite sex.

10 C. 1. An individual who, while accessing a restroom or
11 changing room designated for use by their sex, encounters a person
12 of the opposite sex in that restroom or changing room has a private
13 cause of action for declaratory and injunctive relief against the
14 covered entity if the covered entity:

15 a. provided the person permission to use a restroom or
16 changing room of the opposite sex, or

17 b. failed to take reasonable steps to prohibit the person
18 of the opposite sex from using the restroom or
19 changing room of the opposite sex.

20 2. An individual who is required by the covered entity to share
21 sleeping quarters with a person of the opposite sex has a private
22 cause of action for declaratory and injunctive relief against the
23 covered entity.

1 3. All civil actions brought pursuant to this section shall be
2 initiated within two years after the violation occurred. An
3 individual aggrieved under this section who prevails in court may
4 recover reasonable attorney fees and costs from the offending
5 covered entity.

6 SECTION 3. This act shall become effective November 1, 2026.
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